

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 13, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, AUGUST 13, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, AUGUST 12, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0061181 UNIFUND CCR v. NAVARRO, RACHAEL

The motion to set aside is continued to **September 24, 2026, at 8:30 a.m. in Department 3**.

2. M-CV-0091521 LVNV FUNDING v. FINNEGAN, KEVIN

Plaintiff's Motion for Order that Matters in Request for Admissions be Deemed Admitted Pursuant to CCP 2033.280

Plaintiff moves to have its first set of requests for admissions deemed admitted. However, the time to have discovery motions heard concluded on August 18, 2025, as trial was originally set for September 2, 2025. (Code Civ. Proc., § 2024.020, subd. (a).) The trial continuances do not reopen discovery proceedings. (*Id.* at subd. (b).) Nor has plaintiff moved to reopen the discovery proceedings.

Accordingly, plaintiff's motion is denied.

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3. M-CV-0096651 THE BEST SERVICE v. EATON, CORRINE

Defendant's Motion to Set Aside Entry of Default

Defendant moves the court to set aside the entry of default entered against her on May 6, 2026. (Code Civ. Proc., §§ 473, 473.5.) However, defendant has provided insufficient evidence that the failure to timely respond was due to her mistake, surprise, inadvertence, or excusable neglect. Accordingly, defendant's motion is denied without prejudice.

4. M-CV-0097654 VINEYARD GATE APTS. v. DAVIS, MAHAGANY

This tentative ruling is issued by the **Honorable Albert A. Erkel**. If oral argument is timely requested, it will be heard on **Wednesday, August 19, 2026, at 1:00 p.m. in Department 4.**

Motion to Set Aside Judgment

On July 15, 2026, the court held a bench trial on plaintiff's unlawful detainer complaint. Plaintiff appeared whereas defendant did not. The court entered judgment in favor of plaintiff and against defendant.

The same day, defendant filed an ex parte application for stay pending hearing on motion to set aside judgment that indicated defendant did not receive the court's notice of trial because it was sent to apartment number #110 but defendant resides at apartment number #1100. The court granted a stay and set a hearing on the motion to set aside judgment for July 30, 2026. The court's order also provided

Defendant shall file and serve a copy of the motion to set aside judgment and this order on plaintiff or, if plaintiff is represented by counsel, then on plaintiff's counsel by no later than July 16, 2026 at 5:00 p.m. Service may be effected by personal service, emailed service, or by facsimile. Proof of service shall be filed with the court no later than July 20, 2026. Failure to timely serve and timely file a proof of service with the court is a sufficient basis for the court to deny defendant's motion

(Order on Ex Parte Application for Stay of Execution, p. 2.)

On 30, 2026, the court again continued the motion for defendant to serve plaintiff's counsel of record with the motion to set aside judgment, court's order on ex parte application for stay of execution, and the court's July 30, 2026, tentative ruling.

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A review of the court record reveals no proof of service of defendant's motion or the court's orders has been filed.

Accordingly, defendant's motion is denied.

However, the court, on its own motion, sets aside the judgment entered on July 15, 2026. The complaint lists defendant's address as "1601 Vineyard Road #1100, Roseville, California 95747." Yet, the notice of trial sent by the court to defendant listed defendant's address as "1601 Vineyard Road #110, Roseville, California 95747." Accordingly, defendant did not receive notice of the trial due to the court's error.

A case management conference is set for **September 4, 2026, at 9:00 a.m. in Department 1** for the parties to select a new trial date. Department 1 is located at 101 Maple Street Auburn, CA 95603.

5. S-CV-0047160 GUINASSO, FRANCES v. CITY OF LINCOLN

Petition for Approval of Minor's Compromise Claim (Ryder Gardner)

Petitioner's petition for approval of minor's compromise claim is continued to **August 20, 2026, at 8:30 a.m. in Department 3**. Petitioner requests the court to approve attorney's fees in the amount of 33.33% of minor's gross recovery. Absent extraordinary and compelling circumstances, the court finds that reasonable attorney fees for representation of a minor are no more than one-fourth of minor's gross recovery. Petitioner shall file an amended petition on or before **August 17, 2026**.

6. S-CV-0053141 HOSTLER, GRACE v. TERNAVSKY, ALEX

The motion for attorney withdrawal is dropped from calendar as no moving papers were filed with the court.

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7. S-CV-0055151 MARVEL, XONYA v. MEDCARE MEDICAL CENTER

Plaintiff's Motion to Compel Defendant MedCare Medical Center, LLC's Responses to Plaintiff's First Set of Form Interrogatories—Employment Law

Plaintiff's unopposed motion to compel answers to form interrogatories, set one is granted. (Code Civ. Proc., § 2030.290.) Defendant MedCare Medical Center, LLC shall provide plaintiff verified answers, without objection, to the form interrogatories within 20 days of service of the signed order after hearing.

Sanctions are denied because the motion was not opposed. (Code Civ. Proc., § 2030.290, subd. (c).) However, repeated conduct of failing to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.)

Plaintiff's Motion to Compel Defendant MedCare Medical Center, LLC's Responses to Plaintiff's First Set of Special Interrogatories

Plaintiff's unopposed motion to compel answers to special interrogatories, set one is granted. (Code Civ. Proc., § 2030.290.) Defendant MedCare Medical Center, LLC shall provide plaintiff verified answers, without objection, to the form interrogatories within 20 days of service of the signed order after hearing.

Sanctions are denied because the motion was not opposed. (Code Civ. Proc., § 2030.290, subd. (c).) However, repeated conduct of failing to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.)

Plaintiff's Motion to Compel Defendant MedCare Medical Center, LLC's Responses to Plaintiff's First Set of Requests for Production

Plaintiff's unopposed motion to compel responses to requests for production of documents, set one is granted. (Code Civ. Proc., § 2031.300.) Defendant MedCare Medical Center, LLC shall provide plaintiff verified responses and responsive documents, without objections, to request for production of documents, set one, within 20 days of service of the signed order after hearing.

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Sanctions are denied because the motion was not opposed. (Code of Civil Procedure sections 2031.300, subd. (c).) However, repeated conduct of failing to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.)

Plaintiff's Motion for Order Deeming Plaintiff's Requests for Admission as Admitted as to Defendant MedCare Medical Center, LLC

Plaintiff's unopposed motion deeming truth of matters admitted is granted. (Code Civ. Proc. § 2033.280.) Plaintiff's request for admissions, set one, as to defendant MedCare Medical Center, LLC, are deemed admitted.

Sanctions in the amount of \$495.70 are imposed upon defendant MedCare Medical Center, LLC. The award is based upon a reasonable hourly rate of \$400 for 1 hours along with the \$95.70 filing fee. (Code Civ. Proc. § 2033.280, subd. (c))

8. S-CV-0055741 WIEAND, JAMIE v. MAZDA MOTOR OF AMERICA

Plaintiffs' Motion to Determine the Amount of Reasonable Attorney's Fees, Costs, and Expenses to be Paid by Defendant

Preliminary Matters

Defendant's objections are overruled in their entirety.

Ruling on Motion

Plaintiffs move for the court to award them \$25,084.11 in attorney's fees and \$834.11 in costs as the alleged prevailing party.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

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Civil Code section 1794 does not define “prevailing party.” Courts thus “adopt a pragmatic approach, determining prevailing party status based on which party succeeded on a practical level. [Citations.] Under that approach, the court exercises its discretion to determine the prevailing party by analyzing which party realized its litigation objectives.” (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 150.) Simply obtaining a net monetary recovery does not necessarily render a party the prevailing party. (*See MacQuiddy v. Mercedes-Benz USA, LLC* (2015) 233 Cal.App.4th 1036, 1047.)

Here, when taking a pragmatic approach to determine which party realized its litigation objectives, the court determines plaintiffs are not the prevailing parties. Their litigation objectives were to rescind their contract for the vehicle, restitution, damages, prejudgment interest, attorney’s fees and costs, and a civil penalty of two times their damages. Notably, plaintiffs did not seek repurchase of their vehicle in the complaint. The settlement between the parties and the communications thereto, attached as Exhibits 1 and 2 to Chad David’s declaration, confirms the recovery received was repurchasing the vehicle, reimbursing plaintiffs for their down payment, offsets, and other incidental costs. These were not litigation objectives.

Additionally, the court would be remiss to not mention that defendant initiated the repurchase process before the complaint was filed, before the complaint was served, and after it answered the complaint. However, the delay appears attributable to plaintiffs and their counsel of record for not providing the documents defendant requested to finalize the repurchase process. (*Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 881.) So, the complaint was not filed to secure a repurchase of their vehicle; it appears the complaint was filed “to recover the civil penalty and/or attorney fees.” (*Dominguez v. American Suzuki Motor Corp.* (2008) 160 Cal.App.4th 53, 59.)

Accordingly, plaintiff’s motion is denied.

9. S-CV-0057320 FLANAGAN, SEAN v. MAYHEW, LYNN

Defendant Psomas Inc.’s Demurrer to the Complaint

Defendant demurs to the first cause of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action for personal injury/negligence. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described

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conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Defendant specifically demurs to plaintiff’s first cause of action on the grounds plaintiff has not filed a certificate of merit. Code of Civil Procedure section 411.35 requires in professional negligence actions against a person holding a valid land surveyor’s license, as here, for plaintiff to file and serve a certificate of merit within 60 days after filing a complaint. (Code Civ. Proc., § 411.35, subds. (a)–(b).)

Here, when taking the factual allegations in the complaint as true and reviewing the court record, there are insufficient allegations that plaintiff has timely filed and served a certificate of merit. Accordingly, defendant’s demurrer is sustained with leave to amend. (*Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360.)

Plaintiff shall file and serve an amended complaint on or before **August 24, 2026**.

10. S-CV-0057330 IN RE THE PETITION OF VARDANYAN, SARA

Petition for Approval of Minor’s Compromise Claim (Lena Eliza Avakyan)

The petition for approval of minor’s compromise claim is denied without prejudice. There is insufficient evidence of good cause alleged for the entirety of the recovery to be awarded to the minor’s mother.

11. S-CV-0057560 DESJARLAIS, RICKY v. CUMMING MANAGEMENT

Defendants’ Demurrer to Plaintiff’s Complaint

Defendants demur to all six causes of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the six causes of action alleged. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no

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matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

First Cause of Action—Retaliation in Violation of Labor Code Section 1102.5

To state a cause of action for retaliation in violation of Labor Code section 1102.5, plaintiff must establish “(1) [h]e engaged in a protected activity, (2) h[is] employer subjected h[im] to an adverse employment action, and (3) there is a causal link between the two.” (*Bowen v. M. Caratan, Inc.* (E.D. Cal. 2015) 142 F.Supp.3d 1007, 1030–1031.) However, this cause of action does not create liability against individual defendants. (*Tillery v. Lollis* (E.D. Cal., Aug. 13, 2015, No. 1:14-CV-02025-KJM) 2015 WL 4873111, at *10; *Bales v. County of EL Dorado* (E.D. Cal., Sept. 20, 2018, No. 2:18-CV-01714-JAM-DB) 2018 WL 4558235, at *3.)

When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, the complaint does not allege facts sufficient to state this cause of action against him because there is no individual liability. Accordingly, the demurrer is sustained without leave to amend as to the first cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., the complaint alleges facts sufficient to state the first cause of action for retaliation in violation of Labor Code section 1102.5. Accordingly, the demurrer is overruled as to the first cause of action against defendant Cumming Management Group, Inc.

Second Cause of Action—Age Discrimination in Violation of the Fair Employment and Housing Act (Government Code § 12940 et seq.)

To state a cause of action for age discrimination in violation of the Fair Employment and Housing Act, plaintiff must establish he “(1) is over the age of 40; (2) suffered an adverse employment action; (3) was performing satisfactorily at the time of the adverse action; and (4) suffered the adverse action under circumstances that give rise to an inference of unlawful discrimination, i.e., evidence that the plaintiff was

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replaced by someone significantly younger than the plaintiff.” (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 321.) However, individual supervisory employees cannot be personally liable for discrimination under the Fair Employment and Housing Act. (*Reno v. Baird* (1998) 18 Cal.4th 640, 663.)

When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, the complaint does not allege facts sufficient to state this cause of action against him because there is no individual liability. Accordingly, the demurrer is sustained without leave to amend as to the second cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., the complaint alleges facts sufficient to state the second cause of action for age discrimination in violation of the Fair Employment and Housing Act. Accordingly, the demurrer is overruled as to the second cause of action against defendant Cumming Management Group, Inc.

Third Cause of Action—Harassment in Violation of the Fair Employment and Housing Act (Government Code § 12940(j))

Government Code section 12940, subdivision (j) prohibits an employer from harassing an employee because of their age. (Gov. Code, § 12940, subd. (j).) Harassment includes “discriminatory intimidation, ridicule and insult that is sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment. [Citations.] Moreover, harassing conduct takes place outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives. [Citation.] Thus, harassment focuses on situations in which the *social environment* of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.” (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 869 [internal quotation marks omitted]; *Reno v. Baird* (1998) 18 Cal.4th 640, 645–46.) Notably, “commonly necessary personnel management actions such as hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like, do not come within the meaning of harassment.” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64–65.)

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Here, when taking the factual allegations in the complaint as true, plaintiff alleges facts sufficient to state the third cause of action for harassment in violation of the fair employment and housing act against defendants. Accordingly, the demurrer is overruled as to this cause of action.

Fourth Cause of Action—Failure to Prevent Discrimination and Harassment
(Government Code § 12940(k))

The failure to prevent discrimination and harassment is derivative to the second and third causes of action for age discrimination and harassment in violation of the Fair Employment and Housing Act. (Gov. Code, § 12940, subd. (k); *Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1317.) This cause of action does not apply to supervisory employees. (See Gov. Code, § 12940, subd. (k).)

When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, plaintiff does not allege facts sufficient to state this cause of action against him because there is no individual liability. Accordingly, the demurrer is sustained without leave to amend as to the fourth cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., plaintiff alleges facts sufficient to state the fourth cause of action for failure to prevent discrimination and harassment. Accordingly, the demurrer is overruled as to the fourth cause of action against defendant Cumming Management Group, Inc.

Fifth Cause of Action—Wrongful Termination in Violation of Public Policy

A common law claim for wrongful termination in violation of public policy exists when an employer discharges an at will employee for a reason that violates fundamental public policy. (*Holtzclaw v. Certainteed Corp.* (E.D. Cal. 2011) 795 F.Supp.2d 996, 1021.) The Fair Employment and Housing Act constitutes a public policy for this tort. (*Ibid.*) However, where the underlying Fair Employment and Housing Act claim fails then the wrongful termination in violation of public policy claim fails as well. (*Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1169.) This cause of action does not lie against individual defendants. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 900.)

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When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, plaintiff does not allege facts sufficient to state this cause of action against him because there is no individual liability. Accordingly, the demurrer is sustained without leave to amend as to the fifth cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., plaintiff alleges facts sufficient to state the fifth cause of action for wrongful termination in violation of public policy. Accordingly, the demurrer is overruled as to the fifth cause of action against defendant Cumming Management Group, Inc.

Sixth Cause of Action—Failure to Indemnify (Labor Code § 2802)

Labor Code section 2802, subdivision (a) requires that “An employer shall indemnify his or her employee for all necessary expenditures or losses incurred by the employee in direct consequence of the discharge of his or her duties, or of his or her obedience to the directions of the employer, even though unlawful, unless the employee, at the time of obeying the directions, believed them to be unlawful.” (Lab. Code, § 2802, subd. (a).)

When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, plaintiff does not allege facts sufficient to state this cause of action against him because defendant Jorge Rojas is not an employer. Accordingly, the demurrer is sustained without leave to amend as to the sixth cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., plaintiff alleges facts sufficient to state the sixth cause of action for failure to indemnify. Accordingly, the demurrer is overruled as to the sixth cause of action against defendant Cumming Management Group, Inc.

In sum, the demurrer is sustained without leave to amend as to the first, second, fourth, fifth, and sixth causes of action alleged against defendant Jorge Rojas and overruled as to the remainder of the demurrer.

Defendants shall file and serve a responsive pleading on or before **August 24, 2026**.